

of Watergate-related crimes." H. R. Rep. No. 93-1507, p. 2 (1974). Second, again referring to the Nixon-Sampson agreement, Congress expressed its desire to safeguard the "public interest in gaining appropriate access to materials of the Nixon Presidency which are of general historical significance. The information in these materials will be of great value to the political health and vitality of the United States." *Ibid.*⁴¹ Indeed, these same objectives are stated in the text of the Act itself, § 104 (a), note following 44 U. S. C. § 2107 (1970 ed., Supp. V), where Congress instructs the General Services Administration to promulgate regulations that further these ends and at the same time protect the constitutional and legal rights of any individual adversely affected by the Administrator's retention of appellant's materials.

Evaluated in terms of these asserted purposes, the law plainly must be held to be an act of nonpunitive legislative policymaking. Legislation designed to guarantee the availability of evidence for use at criminal trials is a fair exercise of Congress' responsibility to the "due process of law in the fair administration of criminal justice," *United States v. Nixon*, 418 U. S., at 713, and to the functioning of our adversary legal system which depends upon the availability of relevant evidence in carrying out its commitments both to fair play and to the discovery of truth within the bounds set by law. *Branzburg v. Hayes*, 408 U. S. 665, 688 (1972); *Blackmer v. United States*, 284 U. S. 421, 438 (1932); *Blair v. United States*, 250 U. S. 273, 281 (1919). Similarly, Congress' in-

⁴¹ The Senate pointed to these same objectives in nullifying the Nixon-Sampson agreement: "[1] To begin with, prosecutors, defendants, and the courts probably would be deprived of crucial evidence bearing on the defendants' innocence or guilt of the Watergate crimes for which they stand accused. [2] Moreover, the American people would be denied full access to all facts about the Watergate affair, and the efforts of Congress, the executive branch, and others to take measures to prevent a recurrence of the Watergate affair may be inhibited." S. Rep. No. 93-1181, p. 4 (1974).